

SUMMARY DISSOLUTION INFORMATION

This booklet is available in English and Spanish from the office of the court clerk in the superior court of each county in California, or at courts.ca.gov/documents/fl810.pdf and courts.ca.gov/documents/fl810s.pdf.

Este folleto puede obtenerse en inglés y en español en la Dirección de Registro Público del Condado (Office of the Court Clerk) o en la Corte Superior (Superior Court) de cada condado en el estado de California o en el sitio courts.ca.gov/documents/fl810.pdf y courts.ca.gov/documents/fl810s.pdf.

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I. WHAT IS THIS BOOKLET ABOUT?

This booklet describes a way to end a marriage, a domestic partnership, or both through a kind of divorce called **summary dissolution**.

The official word for **divorce** in California is **dissolution**. There are two ways of getting a divorce, or dissolution, in California. The usual way is called a **regular dissolution**.

Summary dissolution is a shorter and easier way. But not everybody can use it. Briefly, a summary dissolution is possible for couples who

1. have no children together who are minors (a minor is a child who is under 18 years of age);
2. have been married and/or in a domestic partnership five years or less (this means that the time between the date you married or registered your domestic partnership and the date you separated from your spouse or domestic partner is five years or less);
3. do not own very much;
4. do not owe very much;
5. do not want spousal or domestic partner support from each other; and
6. have no disagreements about how their belongings and their debts are going to be divided up once they are no longer married to or in a domestic partnership with each other.

With this procedure, you will not have to appear in court. You may not need a lawyer, but it is in your best interest to see a lawyer about the ending of your marriage or domestic partnership. See page 19 for more details about how a lawyer can help you.

For a summary dissolution, you prepare and file *Joint Petition for Summary Dissolution* (form [FL-800](#)) with the superior court clerk in your county. You will also prepare and turn in *Judgment of Dissolution and Notice of Entry of Judgment* (form [FL-825](#)), together with a property settlement agreement.* Your divorce, ending your marriage and/or your domestic partnership, will be final six months after you file your *Joint Petition for Summary Dissolution*. During the six months while you wait for your divorce to become final, either of you can stop the process of summary dissolution if you change your mind. One of you can file *Notice of Revocation of Petition for Summary Dissolution* (form [FL-830](#)), and that will stop the divorce. If either one of you still wants to get divorced, then that person will have to file for a regular dissolution with a *Petition—Marriage/Domestic Partnership* (form [FL-100](#)) unless you both agree to start a new summary dissolution process.

IMPORTANT! Domestic partners who qualify for a summary dissolution can choose to use the process described in this booklet OR a special summary dissolution for domestic partners through the California Secretary of State. You can find the California Secretary of State forms at www.sos.ca.gov. **There is no filing fee for this process.** If you choose to file to terminate your domestic partnership through the Secretary of State, do not use this guide.

This booklet will tell you

1. who can use the summary dissolution procedure;
2. what steps you must take to get a summary dissolution;
3. when it would help to see a lawyer; and
4. what risks you take when you use this procedure rather than the regular dissolution procedure.

If you wish to use the summary dissolution procedure, you must, at the time you file the joint petition, sign a statement that says you have read and understood this booklet. It is important for you to read the whole booklet very carefully.

Save this booklet for at least six months if you decide to start a summary dissolution. If you decide you want to stop the summary dissolution process and revoke your petition, it will tell you how to do that.

SPECIAL WARNING

If you are an undocumented person who became a lawful permanent resident on the basis of your marriage to a U.S. citizen or to a lawful permanent resident, obtaining a dissolution within two years of your marriage may lead to your deportation. You should consult a lawyer before obtaining a divorce.

* A property settlement agreement is an agreement that the two of you write or have someone write for you after you fill out the worksheets in this booklet. The agreement spells out how you will divide what you own and what you owe.

II. SOME TERMS YOU NEED TO KNOW

In the following pages, you will often see the terms *community property*, *separate property*, and *community obligations*. Those terms are explained in this section.

As a married couple or domestic partners, the two of you are, in the eyes of the law, a single unit. There are certain things that you **own together** rather than separately. And there may be certain debts that you **owe together**. If one of you borrows money or buys something on credit, the other one can be made to pay.

If your marriage or domestic partnership breaks up, you become two separate individuals again. Before that can happen, you have to decide what to do with the things you *own* as a couple and the money you *owe* as a couple.

The laws that cover these questions contain the terms *community property*, *separate property*, and *community obligations*. To understand what these terms mean, you should have a clear idea of the **length of time you lived together as spouses or domestic partners**. This is the period between the day you married or registered your domestic partnership and the day you separated.

It may not be easy to decide exactly when you separated. In most cases, the day of the separation is the day the couple stopped living together. However, you may want to choose the day when you definitely decided to get a divorce and took some action to show this (like telling your spouse or domestic partner that you wanted a divorce).

Community Property

Community property is everything spouses or registered domestic partners **own together**.

In most cases that includes

1. money you now have that either of you earned during the time you were living together as spouses or domestic partners; and
2. anything either of you bought with money earned during that period. It does not matter if only one of you earned or spent the money.

Separate Property

Separate property is everything spouses or registered domestic partners **own separately from each other**.

In most cases that includes

1. anything either of you owned before you got married or registered your domestic partnership;
2. anything either of you earned or received after your separation; and
3. anything either of you received, as a gift or by inheritance, at any time.

Community Obligations

Community obligations are the debts spouses or registered domestic partners **owe together**.

In most cases that includes anything you still owe on any debts either of you acquired during the time you were living together as spouses or registered domestic partners. (For instance, if you bought furniture on credit while you were married or domestic partners and living together, the unpaid balance is a part of your community obligations.) It usually does not matter if the debt was in the name of one spouse or domestic partner only, like on a credit card.

NOTE: If you have any questions about your separation date or about your property, it would be good to see a lawyer as these issues can be complicated. Also, if you lived together before your marriage or domestic partnership, you may wish to see a lawyer about possible additional rights either of you may have. For more information, read page 19 "*Should You See a Lawyer?*"

III. WHO CAN USE THE SUMMARY DISSOLUTION PROCEDURE?

You can use the summary dissolution procedure only if **all** of the following statements are true about you at the time you file *Joint Petition for Summary Dissolution* (form FL-800). Check this list very carefully. If even *one* of these statements is not true for you, you cannot get a divorce in this way.

- _____ 1. We have both read this booklet, and we both understand it.
- _____ 2. We have been married or registered as domestic partners five years or less between the date that we got married and/or registered our domestic partnership and the date we separated. (*Note that if you are trying to end both a marriage AND a domestic partnership at the same time through a summary dissolution, both your marriage and domestic partnership must have lasted five years or less.*)
- _____ 3. No children were born to the two of us together before or during our marriage and/or domestic partnership.
- _____ 4. We have no adopted children under 18 years of age.
- _____ 5. Neither one of us is pregnant.
- _____ 6. Neither of us owns any part of any land or buildings.
- _____ 7. Our community property is not worth more than \$57,000. (Do not count cars in this total.)
- _____ 8. Neither of us has separate property worth more than \$57,000. (Do not count cars in this total.)
- _____ 9. The total of our community obligations (other than cars) is \$7,000 or less.

For deciding on statements 7, 8, and 9, use the guide on pages 5–11.

- _____ 10. a. At least one of us has lived in California for the past six months or longer *and* has lived in the county where we are filing for dissolution for the past three months or longer; or
 - b. We are only asking to end a domestic partnership registered in California; or
 - c. We are the same sex and were married in California but are not residents of California. Neither of us lives in a place that will allow us to divorce. We are filing this case in the county in which we married.
- _____ 11. We have prepared and signed an agreement that states how we want our community assets and debts to be divided between us (or declared in the joint petition that we do not have community assets and debts).
- _____ 12. We have both signed the joint petition and all other papers needed to carry out this agreement.
- _____ 13. Together with the joint petition, we will turn in to the clerk of the superior court the judgment of dissolution forms and property settlement agreement, along with two self-addressed stamped envelopes.
- _____ 14. We both want to end the marriage and/or domestic partnership because of serious, permanent differences.
- _____ 15. We have both agreed to use the summary dissolution procedure rather than the regular dissolution procedure.
- _____ 16. We are both aware of the following facts:
 - a. There is a six-month waiting period, and either of us can stop the divorce at any time during this period.
 - b. The date that appears on *Judgment of Dissolution of Marriage and Notice of Entry of Judgment* (form FL-825) we receive from the court as the "effective date" of the dissolution is the date our divorce will be final, unless one of us has asked to stop the divorce prior to that effective date.
 - c. After the dissolution becomes final, neither of us has any right to expect money or support from the other except that which is included in the property settlement agreement.
 - d. By choosing the summary dissolution procedure, we give up certain legal rights that we would have if we had used the regular dissolution procedure. These rights are explained on page 4.

IV. AN IMPORTANT DIFFERENCE BETWEEN SUMMARY DISSOLUTION AND REGULAR DISSOLUTION

With a regular dissolution, either spouse or domestic partner can ask for a court hearing or trial. And with a regular dissolution, if either spouse or domestic partner is unhappy with the judge's final decision, it is possible to challenge that decision. This can be done, for example, by asking for a new trial. It is also possible to **appeal** the decision by taking the case to a higher court.

With a summary dissolution, there is no trial or hearing. Couples who choose this method of getting a divorce do not have the right to ask for a new trial (since there is no trial) or the right to appeal the case to a higher court.

There are, however, some cases in which a divorce agreement under a summary dissolution can be challenged. You will have to see a lawyer about this. The court *may* have the power to set aside the divorce if you can show that one of the following things happened:

1. You were treated unfairly in the property settlement agreement.

This is possible if you find out that the things you agreed to give your spouse or domestic partner were much more valuable than you thought at the time of the dissolution.

2. You went through the dissolution procedure against your will.

This is possible if you can show that your spouse or domestic partner used threats or other kinds of unfair pressure to get you to go along with the divorce.

3. There are serious mistakes in the original agreement.

Some kinds of mistakes can make the dissolution invalid, but you will have to go to court to prove the mistakes. It may be that one or both of you had a lot of property that you had forgotten about when you drew up the property settlement agreement. Or maybe a bank account mentioned in the agreement had much more money or much less money in it than your agreement states.

4. Neither of you complied with preliminary disclosure requirements.

California law requires that you fully share all information about your property and debts as well as your income. You have to share this information before you sign your property settlement agreement.

In summary dissolution cases, this means that you and your spouse or domestic partner must each complete and exchange (1) *Income and Expense Declaration* ([form FL-150](#)), (2) all tax returns you filed in the last two years, and (3) the property worksheets on pages 7, 9, and 11 (or *Declaration of Disclosure* (form [FL-140](#)) and either *Schedule of Assets and Debts* (form [FL-142](#)) or *Property Declaration* (form [FL-160](#))).

In addition, each spouse or domestic partner must complete and give to the other spouse or domestic partner a written statement about any investment opportunity, business opportunity, or other income-producing opportunity that developed since the date you separated which was based on any investment made, significant business done, or other income-producing opportunity that was presented to you between the date you married or became domestic partners and the date you separated.

Correcting mistakes and unfairness in a summary dissolution proceeding can be expensive, time-consuming, and difficult. It is very important for both of you to be honest, cooperative, and careful when you or your lawyers do the paperwork for the dissolution.

V. HOW DO YOU FIGURE OUT THE VALUE OF YOUR PROPERTY AND THE AMOUNT OF YOUR DEBTS?

Section III, page 3, lists statements that must be true if you want to use the summary dissolution procedure.

Statement 7 reads: “Our community property is not worth more than \$57,000.”

Your community property is the money and things you own jointly as spouses or domestic partners. This was explained on page 2. The value of your community property is determined by adding together (1) the amount of **money** you have as community property and (2) the “fair market value” of the **possessions** you have as community property.

The **fair market value** is an estimate of the amount of money you could get if you sold these items to a stranger—for example, through a classified ad in the newspaper or listings on the internet (online). It does **not** mean what you paid for it originally, and it does **not** mean how much it would cost you to replace it if you lost it.

One way of estimating the fair market value of your goods is to use prices for equivalent items in other people's classified ads in newspapers or online for secondhand goods.

Three kinds of items go into figuring out your community property:

1. Money (as in bank accounts and credit union accounts);
2. Things you own outright (furniture that is already paid for, for example); and
3. Things you are buying on credit.

When you include things you still owe money on, subtract the amount of money you still owe on them from the fair market value.

You should not include the value of a car in this list.

Statement 8 reads: “Neither of us has separate property worth more than \$57,000.”

Separate property is property that each spouse or domestic partner owns separately. The term is explained on page 2. Separate property includes the same kinds of things used in determining community property. And again, you should not include cars in this list.

Statement 9 reads: “The total of our community obligations (other than cars) is \$7,000 or less.”

Your community obligations are the debts that you and your spouse or domestic partner owe jointly. The term is explained on page 2. List all the debts you have that you took on while you were living together as spouses or domestic partners. If you borrowed money before you got married or registered your domestic partnership, you do **not** have to include that in your community obligations. If you bought furniture on credit after you got married or registered your domestic partnership but before you separated, you **have to** include the amount of money you still owe on the furniture. If you bought a stereo after you separated, you do **not** have to include that.

Do not include car loans in this list.

NOTICE: The law for summary dissolution allows you to leave out cars when you figure out whether you are **eligible** for this kind of divorce. But if you do have cars as part of your community property, you still have to decide who is going to own them (and who is going to pay for them) after your divorce. You must include them in your property settlement agreement.

Worksheets to help you figure out these amounts are found on pages 6–11. You may use the following forms in this booklet to figure out the total of your community and separate property assets and obligations: (1) the worksheet on page 7 (Value of Separate Property), (2) the worksheet on page 9 (Value and Division of Community Property), and (3) the worksheet on page 11 (Community Obligations and Their Division). Sample forms showing how to fill out those worksheets are on pages 6, 8, and 10.

PETITIONER 1: Sam	CASE NUMBER:
PETITIONER 2: Alex	

VI. SAMPLE WORKSHEET FOR DETERMINING VALUE OF SEPARATE PROPERTY

This worksheet will help you determine whether you are eligible to use the summary dissolution procedure. The total fair market value of the **separate property of one spouse/domestic partner** cannot be more than \$57,000. The total fair market value of the **separate property of the other spouse/domestic partner** cannot be more than \$57,000. Separate property is anything that either of you owned or earned before you got married or registered your domestic partnership, anything you earned or bought after your separation, and anything that was given to just one of you as a gift during your marriage or domestic partnership. Do not include cars.

Note: The information on this form is for an imaginary couple, Sam and Alex, who are married. (When you fill out your worksheet, use your own information.)

A. Bank accounts, credit union accounts, retirement funds, cash value of insurance policies, etc.				Sam's Property—Fair Market Value	Alex's Property—Fair Market Value
Item					
Credit union savings—Sam (before marriage)				\$420.00	
Savings bonds—Alex (bought before marriage)					\$250.00
Retirement plan—Sam (before marriage and after separation)				\$1,500.00	
Retirement plan—Alex (before marriage and after separation)					\$1,300.00
B. Items owned outright					
Item					
Clothes—Sam (bought before marriage)				\$350.00	
Stocks—Sam (birthday present from father)				\$375.00	
Furniture—Sam (owned before marriage)				\$460.00	
Camera—Alex (owned before marriage)					\$229.00
Smartwatch—Alex (bought after separation)					\$142.00
Clothes—Alex (bought after separation)					\$250.00
C. Items being bought on credit					
Item	Fair Market Value	Minus Amount Owed	= Net Fair Market Value		
Television—Sam (after separation)	\$400.00	\$350.00	\$50.00	\$50.00	
Clothes—Sam (after separation)	\$220.00	\$170.00	\$50.00	\$50.00	
GRAND TOTALS: Sam and Alex SEPARATE PROPERTY				\$3,205.00	\$2,171.00

PETITIONER 1:	CASE NUMBER:
PETITIONER 2:	

VI. WORKSHEET FOR DETERMINING VALUE OF SEPARATE PROPERTY

This worksheet will help you determine whether you are eligible to use the summary dissolution procedure. The total fair market value of the **separate property of one spouse/domestic partner** cannot be more than \$57,000. The total fair market value of the **separate property of the other spouse/domestic partner** cannot be more than \$57,000. Separate property is anything that either of you owned or earned before you got married or registered your domestic partnership, anything you earned or bought after your separation, and anything that was given to just one of you as a gift during your marriage or domestic partnership. Do not include cars.

A. Bank accounts, credit union accounts, retirement funds, cash value of insurance policies, etc.				PETITIONER 1 Property— Fair Market Value (FMV)	PETITIONER 2 Property— Fair Market Value (FMV)
Item					
B. Items owned outright					
Item					
C. Items being bought on credit					
Item	Fair Market Value	Minus Amount Owed	= Net Fair Market Value		
GRAND TOTALS: PETITIONER 1'S AND PETITIONER 2'S SEPARATE PROPERTY					

PETITIONER 1: Sam PETITIONER 2: Alex	CASE NUMBER:
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VI. SAMPLE WORKSHEET FOR DETERMINING VALUE AND DIVISION OF COMMUNITY PROPERTY

Note: The information on this form is for an imaginary couple, Sam and Alex, who are married. (When you fill out your worksheet, use your own information.)

This side of the sheet will help you determine whether you are **eligible** to use the summary dissolution procedure. The grand total value of your community property cannot be more than \$57,000.

This side of the sheet will help you decide on a fair division of your property. It will help you prepare your property settlement agreement.

A. Bank accounts, credit union accounts, retirement funds, cash value of insurance policies, etc.						
	Item	Amount		Sam Receives	Alex Receives	
	Home Savings Credit Union savings account	\$150.00		\$150.00		
	Life insurance (cash value)	\$250.00		\$250.00		
	Retirement Plan—Sam	\$600.00		\$600.00		
	Retirement Plan—Alex	\$500.00			\$500.00	
	Home Savings Credit Union checking account	\$180.00			\$180.00	
	Subtotal A	\$1,680.00		\$1,000.00	\$680.00	
B. Items you own outright (for example, stocks and bonds, sports gear, furniture, household items, tools, interests in businesses, jewelry; do not include cars)						
	Item	Fair Market Value		Sam Receives	Alex Receives	
	Furniture & furnishings—Sam's apartment	\$775.00		\$775.00		
	Furniture & furnishings—Alex's apartment	\$300.00			\$300.00	
	Terriers season tickets	\$285.00			\$285.00	
	Savings bonds	\$200.00		\$200.00		
	Jewelry—Sam	\$200.00		\$200.00		
	Pet parrot and cage	\$40.00			\$40.00	
	Subtotal B	\$1,800.00		\$1,175.00	\$625.00	
C. Items you are buying on credit (for example audio equipment, appliances, furniture, tools; do not include cars)						
	Item	Fair Market Value	Minus Amount Owed = Net Fair Market Value	Sam Receives	Alex Receives	
	Home entertainment system	\$305.00	\$150.00 \$155.00		\$155.00	
	Television	\$400.00	\$100.00 \$300.00		\$300.00	
	Golf clubs	\$350.00	\$50.00 \$300.00		\$300.00	
	Subtotal C		\$755.00	\$0.00	\$755.00	
Grand total value of community property = A + B + C				\$4,235.00	\$2,175.00	\$2,060.00

PETITIONER 1:	CASE NUMBER:
PETITIONER 2:	

VI. WORKSHEET FOR DETERMINING VALUE AND DIVISION OF COMMUNITY PROPERTY

This side of the sheet will help you determine whether you are **eligible** to use the summary dissolution procedure. The grand total value of your community property cannot be more than \$57,000.

This side of the sheet will help you decide on a fair division of your property. It will help you prepare your property settlement agreement.

A. Bank accounts, credit union accounts, retirement funds, cash value of insurance policies, etc.

Item	Amount	PETITIONER 1 Receives	PETITIONER 2 Receives
Subtotal A			

B. Items you own outright (for example, stocks and bonds, sports gear, furniture, household items, tools, interests in businesses, jewelry; do not include cars)

Item	Fair Market Value	PETITIONER 1 Receives	PETITIONER 2 Receives
Subtotal B			

C. Items you are buying on credit (for example audio equipment, appliances, furniture, tools; do not include cars)

Item	Fair Market Value	Minus Amount Owed	=	Net Fair Market Value	PETITIONER 1 Receives	PETITIONER 2 Receives
Subtotal C						

**Grand total value of
community property = A + B + C**

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PETITIONER 1: Sam PETITIONER 2: Alex	CASE NUMBER:
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VI. SAMPLE WORKSHEET FOR DETERMINING COMMUNITY OBLIGATIONS
 AND THEIR DIVISION

Note: The information on this form is for an imaginary couple, Sam and Alex, who are married. (When you fill out your worksheet, use your own information and make sure you indicate if you are married, in a domestic partnership, or both.)

This side of the worksheet will help you determine whether you are **eligible** to use the summary dissolution procedure. The total amount of your community obligations (debts) cannot be more than \$7,000. Do not include car loans. Be sure you include any other debts you took on while you were living together as spouses or domestic partners. List the amount you owe on the items from your **Worksheet for Determining Value and Division of Community Property**. Then add all other debts and bills, including loans, charge accounts, medical bills, and taxes you owe.

This side of the worksheet will help you decide on a fair way to divide up your community obligations. You will use this information in preparing a **property settlement agreement**.

Item	Amount Owed	Sam Will Pay	Alex Will Pay
Audio equipment	\$150.00		\$150.00
Television	\$100.00		\$100.00
Golf clubs	\$50.00		\$50.00
Dr. R.C. Himple	\$74.00		\$74.00
Richardson Drug Store	\$32.00		\$32.00
College loan	\$500.00		\$500.00
Cogwell's charge account	\$275.00	\$275.00	
Mister Charge account	\$68.00		\$68.00
Green's Furniture	\$123.00	\$123.00	
Dr. S. Roberts	\$37.00	\$37.00	
Sam's parents	\$150.00	\$150.00	
TOTAL	\$1,559.00	\$585.00	\$974.00

Sam's Share of Community Obligations	Alex's Share of Community Obligations
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PETITIONER 1:	CASE NUMBER:
PETITIONER 2:	

VI. WORKSHEET FOR DETERMINING COMMUNITY OBLIGATIONS AND THEIR DIVISION

This side of the worksheet will help you determine whether you are **eligible** to use the summary dissolution procedure. The total amount of your community obligations (debts) cannot be more than \$7,000. Do not include car loans. Be sure you include any other debts you took on while you were living together as spouses or domestic partners. List the amount you owe on the items from your **Worksheet for Determining Value and Division of Community Property**. Then add all other debts and bills, including loans, charge accounts, medical bills, and taxes you owe.

This side of the worksheet will help you decide on a fair way to divide up your community obligations. You will use this information in preparing a **property settlement agreement**.

Item	Amount Owed	Petitioner 1 Will Pay	Petitioner 2 Will Pay
TOTAL			

Petitioner 1
Share of Community Obligations
 Petitioner 2
Share of Community Obligations

VII. WHAT SHOULD BE INCLUDED IN THE PROPERTY SETTLEMENT AGREEMENT?

NOTE:

If after reviewing the community property worksheets on the previous pages you and your spouse or domestic partner agree that you do not have community assets or liabilities, you do not need to complete a property settlement agreement. Skip to page 16.

A property settlement agreement should contain at least five parts:

I. Preliminary Statement

This part identifies the spouses or domestic partners, states that the marriage and/or domestic partnership is being ended, and states that both spouses or domestic partners agree on the details of the agreement.

II. Division of Community Property

This part has two sections:

1. What the one spouse or domestic partner receives; and
2. What the other spouse or domestic partner receives.

III. Division of Community Obligations

This part has two sections:

1. The amount one spouse or domestic partner must pay and to whom the amount must be paid.
2. The amount the other spouse or domestic partner must pay and to whom the amount must be paid.

IV. Waiver of Spousal Support

This part states that each spouse or domestic partner gives up all rights of financial support from the other.

V. Date and Signature

Both spouses or domestic partners must write the date and sign the agreement.

An example of a property settlement agreement is found on pages 13–15.

VIII. SAMPLE PROPERTY SETTLEMENT AGREEMENT

Go to page 19 if you have questions about debt and liability, or potential bankruptcy, and want to find free or low-cost legal help or hire a lawyer to prepare or review your property settlement agreement.

Below is a sample of an acceptable **property settlement agreement**. You may use it as a model for your own agreement or you may complete another version of the agreement found at courts.ca.gov/documents/propagreement.pdf.

- The parts that are underlined will fit most cases. You can copy these parts for your own agreement. Since many of the words have special meanings in the law, you may wish to talk to a lawyer if you want to change the words.
- The parts printed in regular type (not underlined) are based on an imaginary couple. You will need to replace these parts with items that apply to your situation.
- The numbered notes in *italics* in the right-hand column or at the bottom of the page are **not** part of the agreement. They are there to help you understand it. (Do not include the references to notes 1 and 2 in your agreement.)
- The sample below is for a married couple, so it refers to marriage. If you are ending a domestic partnership, you should say that in your agreement. If you are ending both a marriage and a domestic partnership with the same person, say both and write in the dates of both your marriage and the registration of your domestic partnership.

Remember • You can divide the items any way you want (even if one of you receives more of the marital assets).

- As long as you both agree, the court will accept it.*
- If you cannot agree about the division of your property and debts, you should file a regular divorce.

SAMPLE PROPERTY SETTLEMENT AGREEMENT

I. We are Alex P. Smedlap, hereafter called Alex, and Sam T. Smedlap, hereafter called Sam.^[1] We were married on October 7, 2018, and separated on December 5, 2022. Because irreconcilable differences^[2] have caused the permanent breakdown of our marriage, we have made this agreement together to settle once and for all what we owe to each other and what we can expect from each other. Each of us states here that nothing has been held back and that we have honestly included everything we could think of in listing the money and goods that we own; and each of us states here that we believe the other has been open and honest in writing this agreement. Each of us agrees to sign and exchange any papers that might be needed to complete this agreement.

¹ *If you prefer, you can also write "hereafter called Spouse A [or Spouse B]" or "hereinafter called Partner A [or Partner B]," whichever applies. Just make sure it is clear to whom you are referring.*

² *This means there are problems in your marriage or domestic partnership that you think can never be solved. **Irreconcilable differences** is the only legal grounds for getting a **summary dissolution**.*

* See Family Code section 2550. At the trial in a regular dissolution, a judge would set a value on and divide community property and debts into two approximately equal parts as provided by the Family Code.

Each of us also understands that even after *Joint Petition for Summary Dissolution* is filed, this entire agreement will be canceled if either of us revokes the dissolution proceeding.³

II. Division of Community Property⁴

We divide our community property as follows:

1. Alex transfers to Sam as Sam's sole and separate property:

- A. All household furniture and furnishings located at the apartment at 180 Needlepoint Way, San Francisco.⁵
- B. All rights to cash in savings account at Home Savings Credit Union.
- C. All cash value in life insurance policy insuring life of Sam through Sun Valley Life Insurance.
- D. All retirement plan benefits earned by Sam during marriage.
- E. Two U.S. Savings Bonds, Series E.
- F. Sam's jewelry.
- G. 2015 Chevrolet 4-door sedan.

2. Sam transfers to Alex as Alex's sole and separate property:

- A. All household furniture and furnishings located at the apartment on 222 Bond Street, San Francisco.
- B. All retirement plan benefits earned by Alex during marriage.
- C. Season tickets to Golden State Terriers basketball games.
- D. Home entertainment system.
- E. One set of golf clubs.
- F. One television.
- G. 2014 Ford Explorer SUV.
- H. One pet parrot named Nikki, plus cage and parrot food.
- I. All rights to cash in checking account at Bank of America.

³ *This means that the property agreement is a part of the dissolution proceeding. If either of you decides to stop the dissolution proceeding by turning in Notice of Revocation of Petition for Summary Dissolution (form FL-830) (see page 18), this entire agreement will be canceled.*

⁴ *Community property is property that you own as a couple (see page 2).*

*If you have no community property, replace Part II with the simple statement **"We have no community property."***

⁵ *If the furniture and household goods in one apartment are to be divided, they may have to be listed item by item.*

III. Division of Community Property (Debts)⁶

1. Alex will pay the following debts and will not at any time hold Sam responsible for them:⁷

- A. Mister Charge account.
- B. Debt to Dr. R.C. Himple.
- C. Debt to Richardson Drug Store.
- D. Debt to UC Berkeley for college education loan to Alex.⁸
- E. Debt to Golf Store for golf clubs.
- F. Debt to Everything Electronics for TV and audio equipment.
- G. Debt to Used Ford Store for 2014 Ford Explorer SUV.

2. Sam will pay the following debts and will not at any time hold Alex responsible for them:⁷

- A. Cogwell's charge account.
- B. Debts to Sam's parents.
- C. Debt to Green's Furniture.
- D. Debt to Dr. S. Roberts.
- E. Debt to Friendly Finance Company for 2015 Chevrolet 4-door sedan.

IV. Waiver of Spousal/Partner Support⁹

Each of us waives any claim for spousal/domestic partner support now and for all time.

V. Dated:

Dated:

Alex P. Smedlap

Sam T. Smedlap

⁶ If you have no unpaid debts, replace Part III with the statement "**We have no unpaid community obligations.**"

⁷ A challenge when dividing community debt is that a company you both owe money to, like a credit card company or mortgage company, does not have to honor your agreement. If the person who agreed to pay the joint debt doesn't pay or misses a payment, the company may seek payments from you both and it may hurt both of your credit ratings.

You may consider options other than splitting the joint debt, like (1) paying off the debt, if possible; (2) selling items to pay off the debt; (3) taking out a line of credit to pay off the joint debt; or (4) having the person most able to pay the joint debt take over the payments, but give them more property. For more information, click [here](https://selfhelp.courts.ca.gov/divorce/property-debts) or go to: <https://selfhelp.courts.ca.gov/divorce/property-debts>.

⁸ Even though California is a community property state, if a spouse or domestic partner is not named on a student loan taken out during a marriage or domestic partnership, and if the couple gets a divorce within 10 years of marriage or registration of the domestic partnership, then the spouse or domestic partner who is not the student-borrower will usually not be responsible for repaying the loan.

⁹ "Waives" means that you each give up the right to have your spouse or domestic partner support you financially.

IX. WHAT STEPS DO YOU HAVE TO TAKE TO GET A SUMMARY DISSOLUTION?

If after reviewing the information in this booklet, you feel your marriage or your domestic partnership will qualify for a summary dissolution, you should carefully go through the following 15 steps. You can fill out the forms, worksheets, and agreements in the summary dissolution section

- online, for free, at selfhelp.courts.ca.gov/divorce-california/summary-dissolution/; or
- with neat printing.

1. ____ Complete and give your spouse or domestic partner a list of community and separate property assets and obligations. This information is needed to comply with the requirement to exchange a preliminary declaration of disclosure in summary dissolution cases. Use the forms listed below in 1a or 1b for this purpose.
 - a. ____ *Declaration of Disclosure* (form [FL-140](#)) and *Schedule of Assets and Debts* (form [FL-142](#)) (or *Property Declaration* (form [FL-160](#))). These forms are not included in this booklet. You may find them online at courts.ca.gov/forms.htm. Give one copy to your spouse or domestic partner and keep one for your records; or
 - b. ____ The worksheets in this booklet on pages 7, 9, and 11.
 - (1) ____ Turn to page 7 and complete the Worksheet for Determining Value of Separate Property. See page 6 for an example. Make one extra copy of your worksheet after it has been completed. Give one copy to your spouse or domestic partner and keep one for your records.
 - (2) ____ Turn to page 9 and complete the Worksheet for Determining Value and Division of Community Property. See page 8 for an example. Make one extra copy of your worksheet after it has been completed. Give one copy to your spouse or domestic partner and keep one for your records.
 - (3) ____ Turn to page 11 and complete the Worksheet for Determining Community Obligations and Their Division. See page 10 for an example. Make one extra copy of your worksheet after it has been completed. Give one copy to your spouse or domestic partner and keep one for your records.
2. ____ Along with the documents listed in step 1, give your spouse or domestic partner all tax returns you filed in the last two years. Give one copy to your spouse or domestic partner and keep one copy for your records.
3. ____ Fill out *Income and Expense Declaration* (form [FL-150](#)). You each need to fill out this form and give it to your spouse or domestic partner before you sign your property settlement agreement or complete your divorce. Make one extra copy of your form after it has been completed. Give one copy to your spouse or partner and keep one for your records.
4. ____ Complete a written statement about business and investments opportunities and give it to your spouse or domestic partner before you sign a property settlement agreement or complete your divorce. Keep a copy for your records.

Note: The written statement must describe any investment opportunity, business opportunity, or other income-producing opportunity that developed since the date you separated that was based on any investment made, significant business done, or other income-producing opportunity that was presented to you between the date you married or became domestic partners and the date you separated (there is no specific form for this purpose).
5. ____ Do you have community assets or debts?
 - a. ____ Yes. Complete your property settlement agreement. Both of you must date and sign it. Make two extra copies. See pages 12–15 for an example and instructions.

Note: You can find a version of a property settlement agreement that you can fill out online at: courts.ca.gov/documents/propagreement.pdf
 - b. ____ No. Check box 13a on *Joint Petition for Summary Dissolution* (form FL-800) if you have no community assets or liabilities. No separate agreement is needed, but you must complete steps 1 through 4 above.

6. ____ Fill out *Joint Petition for Summary Dissolution* (form [FL-800](#)). Both of you must sign and date this petition. Make two extra copies of this form. (This is the form you need to **START** the process.)
- Note:** When signing your joint petition and your property settlement agreement, you are signing these documents under penalty of perjury under the laws of the State of California, which is the same as being sworn to testify in court. **You may not sign each other's name.**
7. ____ Make three sets of forms that include copies of your property settlement agreement and a copy of your *Joint Petition for Summary Dissolution* (form FL-800).
8. ____ Fill out the *Judgment of Dissolution and Notice of Entry of Judgment* (form [FL-825](#)) as noted below and make three copies of it.
- a. ____ Fill out the caption (top part of the judgment form).
 - b. ____ Check item 1b or 1c if either of you wants your name restored. Specify the name to be restored.
 - c. ____ Fill in the address of Petitioner 1 and Petitioner 2 on page 2.
9. ____ If you have a property settlement agreement, staple it to the *Judgment* (form FL-825). Make three sets.
10. ____ Make one extra copy of a blank *Notice of Revocation of Petition for Summary Dissolution* (form [FL-830](#)) so each of you has one, and hold on to it. This is the form you would need to **STOP** the process. You may wish to use it during the waiting period if you change your mind and want to stop the process. You should keep one copy. See page 18 for more information.
11. ____ Take your *Joint Petition for Summary Dissolution* (form FL-800), *Judgment of Dissolution and Notice of Entry of Judgment* (form FL-825), and all of your copies to the superior court clerk's office together with two self-addressed, stamped envelopes (one addressed to each spouse or domestic partner). The location of your superior court clerk's office can be found in the phone book or online at courts.ca.gov/find-my-court.htm. The clerk will stamp the date on all copies, will keep one copy of each document, and will return the other two to you. One copy is for each spouse or domestic partner.
12. ____ Pay the superior court clerk's filing fee. If you cannot afford to pay the filing fee, you may qualify for a fee waiver based on your income. If one of you qualifies for a fee waiver but the other one does not, the one who does not qualify will have to pay the filing fee. To request a fee waiver, see *Information Sheet on Waiver of Court Fees and Costs* (form [FW-001-INFO](#)). You will need to prepare a *Request to Waive Court Fees* (form [FW-001](#)) and an *Order on Court Fee Waiver* (form [FW-003](#)).
13. ____ The clerk will file your joint petition and return the copies to you and your spouse or partner. The court may also process the *Judgment of Dissolution* at that time, in the next few weeks, or after the six-month waiting period has expired and give or mail it to you and your spouse or domestic partner. The *Judgment of Dissolution and Notice of Entry of Judgment* (form FL-825) will have a date on which the dissolution ending your marriage, domestic partnership, or both will be final. That is the effective date of your dissolution and it will be six months from the date you file your joint petition. The six-month waiting period is mandated by law.
14. ____ Put your copies of all documents in a safe place.
15. ____ Wait for six months. If either one of you wants to stop the summary dissolution case, fill out and file a *Notice of Revocation of Petition for Summary Dissolution* (form FL-830) before the six months run out.
16. ____ On the day that appears on your *Judgment of Dissolution and Notice of Entry of Judgment* (form FL-825) as the effective date of your dissolution:
- a. Your marriage or domestic partnership (or both) is ended;
 - b. The agreements you made in your property settlement agreement are binding—you will then own the property assigned to you, and you will have to pay the bills assigned to you;
 - c. Except for those agreements, you and your spouse or domestic partner have no further obligations to each other; and
 - d. You are legally free to remarry or register a new domestic partnership.

REMEMBER: Either of you can stop the process by filling out *Notice of Revocation of Petition for Summary Dissolution* (form FL-830) and bringing it to the superior court clerk during the six-month waiting period before the date your dissolution is effective according to the *Judgment of Dissolution and Notice of Entry of Judgment* (form FL-825) that you received from the court.

X. WHAT YOU SHOULD KNOW ABOUT REVOCATION

It is important to realize that the *Notice of Revocation of Petition for Summary Dissolution* (form FL-830) is not just another form you are supposed to fill out and turn in.

Do not fill it out and do not bring it to the superior court clerk unless you want to stop the divorce!

What is the notice of revocation for?

This is the form you need if you want to stop the divorce. **Revoking** the agreement is canceling or stopping it.

What reasons are there for revoking?

There are three reasons you might have for wanting to stop the summary dissolution:

1. You have decided to return to your spouse or domestic partner and continue the marriage or domestic partnership;
2. You want to change over to the regular dissolution as a better way of getting your divorce; or
3. You learn that one of you is pregnant.

Why might you want to change over to the regular dissolution?

You may come to believe that you will get a better settlement if you go to court than with the agreement you originally made with your spouse or domestic partner. (Maybe, after thinking it over, you feel you are not receiving a fair share of the community property.)

How do you do it?

At the time you picked up the joint petition forms, you and your spouse or partner also received a blank *Notice of Revocation of Petition for Summary Dissolution* (form FL-830). Fill out the form, sign it, make two copies, and bring them to the superior court clerk's office. You must also send a copy of form FL-830 to your spouse or domestic partner by first-class mail, postage prepaid, to their last known address. You can do this alone. This form does not need your spouse's or partner's signature.

If you do this at any time during the six-month waiting period, before the effective date of your dissolution, you will stop this divorce proceeding.

Can the dissolution be stopped once the waiting period is over?

NO. After the date the court wrote on your *Judgment of Dissolution and Notice of Entry of Judgment* (form FL-825) as the date your marriage or domestic partnership is ended (the date the divorce is effective), you can no longer revoke the dissolution by filing the revocation form. You may have other legal options, but you will need to talk to a lawyer about them.

If you change over to a regular dissolution, what happens to the part of the waiting period that has passed? You can apply the amount of time you waited on the summary dissolution to your regular dissolution. For example, if four months went by before you decided to revoke the summary dissolution, the waiting period for the regular dissolution will be shortened by four months.

However, you can save this time **only** if you file for a regular dissolution within 90 days of revoking the summary dissolution.

XI. SHOULD YOU SEE A LAWYER?

Must you have a lawyer to use the summary dissolution procedure?

No. You can do the whole thing by yourselves. But it would be wise to see a lawyer before you decide to do it yourselves. You should not rely on this booklet only. It is not intended to take the place of a lawyer.

If you want legal advice, does that mean you have to hire a lawyer?

No. You may hire a lawyer, of course, but you can also just visit a lawyer once or twice for advice on how to carry out the dissolution proceeding. Do not be afraid to ask the lawyer in advance what fee will be charged. It may be surprisingly inexpensive to have a lawyer review your papers, help you with a part of your divorce, or handle all of your divorce.

Do you have to accept your lawyer's advice?

No, you do not. And if you are not pleased with what one lawyer advises, you can feel free to go to another one.

How can a lawyer help you with the summary dissolution procedure?

First, a lawyer can advise you, on the basis of your personal situation, whether you ought to use the regular dissolution procedure rather than the summary dissolution procedure.

Second, a lawyer can read your property settlement agreement to help you figure out if you have thought of everything you should have. (It is easy to forget things you do not see very often, such as savings bonds and safe deposit boxes.)

Third, in many situations it is not easy to figure out what should count as community property and what should count as separate property. Suppose one of you had money before the marriage (or domestic partnership) and put it into a bank account in both of your names and then both of you used money from that account. It may not be easy to decide how the money remaining in that account should be divided. A lawyer can advise you on how to make these decisions.

Fourth, there may be special situations in which your property settlement is not covered by the sample agreement on pages 13–15 or the fillable agreement online.

A lawyer can help you put the agreement in words that are legally precise and cannot be challenged or misinterpreted later.

Where can you find a lawyer?

You can locate organizations that can help you find a lawyer online or in your telephone directory under "Attorneys," "Attorney Referral Service," or "Lawyer Referral Service." In many cases you will be able to find an attorney who will charge only a small fee for your first visit.

You can find information about free or low-cost services through the county bar association in your county. The California Lawyer's Association website www.calawyers.org/bar-relations/california-bar-associations-and-organizations/ can help you find bar associations in your county.

You can find information about certified lawyer referral services on the *Self-Help Guide to California Courts* at selfhelp.courts.ca.gov/getting-legal-help.

You can also find information about certified lawyer referral services at the State Bar website www.calbar.ca.gov.

XII. SOME GENERAL INFORMATION

What about income taxes?

If you have filed a joint tax return, both of you will still be responsible for paying any unpaid taxes even after your divorce.

If you are receiving a tax refund, you should agree in the property settlement agreement on how it should be divided.

The amount of money that you will owe, or that will be taken out of your paycheck, for income taxes may be greater after you are single again. If that is the case, you should prepare yourself for a bigger tax obligation.

It would be a good idea to consult the Internal Revenue Service or a tax expert on how the divorce is going to affect your taxes. You should probably do this before you make your property settlement agreement.

What about bank accounts and credit cards?

If you have a joint bank account, it may be a good idea to close it when you separate and get two individual bank accounts. That way it will be easier to keep your money separate.

If you have credit card accounts that you both have been using, you should destroy the cards and take out separate accounts.

What about cars?

If both of your names are on a title to a car and you agree that one of you is going to own the car, you need to take action to change the ownership. You should call or visit the Department of Motor Vehicles to find out how to do that. You should also talk to the lender to get the debt into one person's name and change the insurance coverage after both the title and debt are transferred.

What if your spouse or domestic partner does not pay the debts as agreed?

If your spouse or domestic partner does not pay a debt as agreed, the person who loaned the money may be able to collect it from you. But then a court may order your spouse or domestic partner to reimburse you. If you have any reason to worry about this, a lawyer can explain your rights to you.

Can you take back your former name?

If you changed your name when you were married or registered your domestic partnership, you have the right to give up that name and get your former name back. You can do this by requesting it in the joint petition. If you do not request this in the joint petition, you can file a form called *Ex Parte Application for Restoration of Former Name After Entry of Judgment and Order* (form [FL-395](#)). Your spouse or domestic partner cannot make you change your name.

What if I am not happy with my final judgment?

When your divorce is final, all your rights and duties connected with your marriage or domestic partnership have ended and you cannot appeal. But if you decide later that you were cheated or pressured by your spouse or domestic partner, or if you believe that a mistake was made in the paperwork connected with the divorce, the court may be able to set aside the divorce. A lawyer can explain your rights.